COUNTER-ARGUMENT DEFENCE BRIEF

Every Attack Greene's Legal Team Can Make — And How You Defeat It

Daryl Keenan Mack v Greene Consulting Engineers (Pty) Ltd

10 Attacks Analysed | 10 Complete Counters | Word-For-Word Scripts

READ BEFORE EVERY CCMA APPEARANCE

HIGH THREAT Attacks 1, 5, 8	MODERATE THREAT Attacks 2, 3, 4, 6	LOW THREAT Attacks 7, 9, 10

HOW TO USE THIS DOCUMENT: Each section shows Greene's exact attack followed by your complete counter. The script at the bottom of each section is what you say word for word. Practise each one out loud tonight. Stay calm. Never raise your voice. Let the documents do the work.

ATTACK 1 — THE PROBATION DEFENCE

THREAT LEVEL: HIGH — Address this first and with precision	
GREENE'S ATTACK: Probation Permits Summary Dismissal Without Full Process	
✗	Schedule 8 Item 8(5) of the LRA expressly permits an employer to dismiss an employee during probation if found to be unsuitable for the position.
✗	The probation period exists precisely to allow employers to assess fit and suitability without the full burden of a disciplinary process.
✗	The applicant was within the first four weeks — the most flexible period of the entire employment relationship.
✗	Greene complied with the probation provisions by holding the alignment meeting and giving the applicant an opportunity to raise concerns on 9 March before the formal decision was communicated.
YOUR COUNTER: Section 187 Has Zero Probation Exceptions — Confirmed in Law	
✓	Section 187(1)(h) of the LRA applies to ALL employees regardless of probationary status. This is not disputed. There is no qualification, no exception, and no carve-out for probationary employees in the text of Section 187.
✓	Schedule 8 Item 8(5) applies to UNSUITABILITY dismissals only. Greene stated INSUBORDINATION as the reason — that is MISCONDUCT. You cannot use an unsuitability provision to justify a misconduct dismissal. These are two entirely separate legal grounds.
✓	The alignment meeting and 9 March discussion do not constitute a disciplinary hearing under Schedule 8 Item 4. A disciplinary hearing requires formal charges, notice, and an opportunity to respond to specific allegations — none of which occurred.
✓	NARAINDATH v CCMA 2000 (21) ILJ 1151 (LC) confirms: probation does not reduce automatically unfair dismissal protection under Section 187.
✓	NUMSA v BADER BOP (Pty) Ltd 2003 (3) SA 513 (CC) confirms: Section 187 applies universally.

SAY THIS	*Commissioner, the employer relies on Schedule 8 Item 8(5). That provision applies to unsuitability. The employer stated insubordination — a misconduct ground. These are separate provisions with different procedural requirements and the employer cannot conflate them. Furthermore, Section 187 of the LRA has no probation exception. It applies to all employees. This is established South African law. The employer's probation argument does not assist them against an automatically unfair dismissal claim.*

BOTTOM LINE: Their best argument. Defeated entirely by the distinction between unsuitability and misconduct, and by the unambiguous text of Section 187.

ATTACK 2 — THE INSUBORDINATION ARGUMENT

THREAT LEVEL: MODERATE — Manageable — counter with documented evidence	
GREENE'S ATTACK: You Refused a Lawful and Reasonable Operational Instruction	
✗	Every employer has the right to determine its own internal reporting structure without interference from employees.
✗	The Engineering Profession Act does not prescribe internal reporting hierarchies within firms.
✗	Larry Nell was named in the contract as supervisor — the EPA requirement was therefore satisfied.
✗	The applicant unilaterally decided that a legitimate operational instruction was unlawful and refused to comply — that is textbook insubordination.
✗	The rebar email is quoted in the termination letter as evidence of refusal to follow instructions.
YOUR COUNTER: The Instruction Was Unlawful — You Cannot Be Insubordinate for Refusing an Unlawful Instruction	
✓	For insubordination to stand, the instruction must be LAWFUL. An instruction that practically requires a candidate engineer to receive all engineering direction from unregistered persons — while a nominal PrEng name sits in a contract but never engages — is not lawful under the Engineering Profession Act 46 of 2000.
✓	The EPA requires ACTIVE supervision of qualifying experience — not a name in a contract. Larry Nell never assigned a project, reviewed work, or conducted mentorship in 9 days. Active supervision is substantive, not nominal.
✓	Employment Contract Clause 3 uses the word LAWFUL explicitly: 'obey all reasonable and LAWFUL orders.' Their own clause is your defence.
✓	On rebar: the termination letter quotes your statement selectively. The full sentence reads: 'I do not mind doing this type of work to align myself with company standards, but this being the first task I received feels misaligned with my role.' That is explicit willingness to comply — not a refusal. Greene truncated your sentence and presented half of it as insubordination.
✓	Produce the full 6 March email. Ask the commissioner to read the complete paragraph. Their truncation is visible on the face of the document.

SAY THIS	*Commissioner, insubordination requires a lawful instruction. The instruction to report to unregistered engineers for all practical supervision of my qualifying engineering experience is not lawful under the Engineering Profession Act 46 of 2000. My own employment contract at Clause 3 requires me to obey lawful instructions — the word lawful is explicit. An unlawful instruction cannot ground a*

finding of insubordination. On the rebar point — I ask the commissioner to read the full sentence from my email of 6 March. The complete sentence contains explicit willingness to comply. The employer quoted half the sentence and omitted the willingness clause.

BOTTOM LINE: Defeated by the EPA unlawfulness argument and by the complete text of the rebar sentence. Produce the full email at every opportunity.

ATTACK 3 — DENIAL OF 5 MARCH DISMISSAL INTENTION

THREAT LEVEL: HIGH — Address this first and with precision	
GREENE'S ATTACK: Larry Nell Did Not Communicate a Dismissal Decision on 5 March	
✗	The alignment meeting was a constructive engagement session — standard management practice when concerns arise from a new employee.
✗	Larry may have expressed concern about the direction things were heading — that is not the same as communicating a dismissal decision.
✗	The applicant has misremembered or mischaracterised what was said.
✗	The applicant's recollection note was written five days after the event — not on the day — making it unreliable.
✗	If a dismissal decision had been made on 5 March, why was the applicant allowed to continue working until 9 March?
YOUR COUNTER: Your Recollection Is Corroborated by the Sequence of Events Itself	
✓	Your recollection note was recorded on 10 March 2026 — one day after your formal dismissal — while memory was fresh. Courts and commissioners routinely accept recent recollection notes as credible evidence. The five-day gap is acknowledged and explained.
✓	The sequence corroborates your account entirely: 3 March protected email → 5 March meeting → 9 March formal dismissal. If the meeting was genuinely supportive, there is no plausible explanation for a dismissal four days later with no intervening disciplinary process.
✓	Ask Greene to produce their own record of what was discussed at the 5 March meeting. If it was a routine supportive engagement, they should have notes. Absence of any record from their side supports your account.
✓	The four days between 5 March and 9 March does not undermine the dismissal intention — it is consistent with management preparing the formal paperwork after communicating the intention verbally.
✓	This is a credibility finding. Your account is specific: Larry's office, between 7 and 8am, his exact words, who was present. Specificity in recollection is a marker of credibility.

SAY THIS	*Commissioner, my recollection is specific — Larry Nell's office, between 7 and 8am on 5 March, in the presence of other team members who had arrived. Larry Nell told me upper management was not impressed and was preparing to let me go. I recorded this account on 10 March while the memory was fresh. The sequence of events corroborates my account — a constructive meeting does not result in formal dismissal four days later with no intervening process. I ask Greene to produce their own record of what was discussed at that meeting.*

BOTTOM LINE: Your most vulnerable point — it is your word against theirs. Corroborate with the sequence, the specificity of your account, and the absence of any alternative explanation.

ATTACK 4 — THE INCOMPATIBILITY ARGUMENT

THREAT LEVEL: MODERATE — Manageable — counter with documented evidence	
GREENE'S ATTACK: The Applicant Was Incompatible With the Workplace From Day One	
✗	The applicant disturbed colleagues on the first day by walking around having conversations when work needed to be done.
✗	The applicant's email of 3 March complained about the firm and its professionalism — not appropriate for a new employee in their first week.
✗	The applicant apologised for tone multiple times — an implicit admission that conduct was inappropriate.
✗	Management received complaints about the applicant's conduct from staff.
✗	Incompatibility is an independent ground for dismissal during probation under Schedule 8 Item 8(5).
YOUR COUNTER: Incompatibility Is Contradicted by Your Own Documented Conduct	
✓	On day one, you were walking around the office to obtain passwords and set up your workstation — a task Greene itself stated was your responsibility. The conversations were the direct consequence of Greene's own failure to prepare your workstation. You were doing what you were told to do.
✓	Before speaking to Joline you specifically asked if she was busy. She said no. This demonstrates professional courtesy — not disruptive conduct.
✓	After the alignment meeting you complied immediately with Larry's instruction to limit conversations. All subsequent interactions were greetings under one minute. This is documented in your recollection note.
✓	Apologising for tone is not an admission of improper conduct. You apologised specifically for the email tone — not for the substance of your concerns or for your first-day conduct. These are different things and you must distinguish them clearly.
✓	Incompatibility requires a pattern of genuine interpersonal conflict affecting the workplace. One day of brief professional conversations while setting up a workstation does not constitute incompatibility.
✓	Greene conflated incompatibility with insubordination in the termination letter — using the former as a fallback ground when the latter fails. They cannot rely on a ground they did not establish with any disciplinary process.

SAY THIS	*Commissioner, the incompatibility allegation rests entirely on conduct from my first day. On that day I was obtaining passwords and access credentials to set up my workstation — a task management had stated was my own responsibility. I asked Joline specifically whether she was busy before engaging. She was not. After the*

alignment meeting I complied immediately with every instruction given. Apologising for email tone is not an admission that my conduct was incompatible with the workplace. Incompatibility requires more than brief professional conversations on a first day when no workstation was ready.

BOTTOM LINE: Low to moderate threat. Defeated by your documented compliance and by Greene's own instruction that workstation setup was your responsibility.

ATTACK 5 — SHORT SERVICE QUANTUM ARGUMENT

THREAT LEVEL: HIGH — Address this first and with precision	
GREENE'S ATTACK: Nine Days Service Cannot Justify Significant Compensation	
✗	The applicant worked for nine calendar days. The financial loss is nine days of salary — approximately R15,000.
✗	Section 194(3) gives commissioners discretion — it does not require 24 months to be awarded in every automatically unfair dismissal case.
✗	The applicant is young, qualified, and will find alternative employment quickly in a skills-short market.
✗	A large award for nine days service would be disproportionate and contrary to established CCMA practice.
✗	The applicant has not demonstrated any long-term financial prejudice beyond immediate loss of income.
YOUR COUNTER: Section 187 Awards Are Deterrent Awards — Not Just Compensatory Awards	
✓	Section 194(3) exists to deter employers from dismissing employees for exercising statutory rights. A nominal award for automatically unfair dismissal — regardless of service length — defeats the legislative purpose entirely.
✓	The severity of Greene's conduct elevates the award beyond pure compensation: dismissing a candidate engineer nine days into employment for citing legislation, with no disciplinary process, no hearing, no warning, and a termination letter that contradicts itself, is egregious conduct.
✓	The ECSA dimension is not before the commissioner but the professional harm is real. Your ability to build qualifying ECSA experience was directly sabotaged by Greene's supervision failures — that is a career-level harm, not just a nine-day income loss.
✓	Comparable automatically unfair dismissal cases with short service have attracted awards of 3 to 6 months where employer conduct was serious. Your opening is 6 months — R219,000. Your floor is 3 months — R109,500.
✓	At conciliation, the settlement motivation is not the arbitration quantum alone — it is the total exposure: R876,000 ceiling plus ECSA sanctions plus legal costs plus industry reputation.

SAY THIS	*Commissioner, Section 194(3) provides for up to 24 months compensation for automatically unfair dismissal. The ceiling exists because Section 187 awards serve a deterrent function — not just a compensatory one. Greene dismissed a candidate engineer nine days into employment for citing legislation, with no disciplinary process whatsoever. The severity of that conduct is the relevant*

consideration, not merely the duration of service. I am claiming 6 months as my opening position. A lesser award would fail to deter the conduct this provision was designed to prevent.

BOTTOM LINE: Their strongest argument on quantum. You do not win 24 months. You argue severity of conduct and deterrent purpose to push toward 4 to 6 months in settlement.

ATTACK 6 — THE NDA SUPPRESSION ATTEMPT

THREAT LEVEL: MODERATE — Manageable — counter with documented evidence	
GREENE'S ATTACK: The Applicant Breached the NDA by Disclosing Confidential Information	
✗	The applicant executed a comprehensive NDA on 26 February 2026.
✗	Filing with the CCMA and ECSA discloses confidential information about Greene's internal operations and supervision arrangements.
✗	The NDA restricts disclosure to third parties — Amy van der Merwe and anyone else the applicant has communicated with is a third party.
✗	The applicant may face a separate civil claim for NDA breach.
YOUR COUNTER: NDA Clause 3.2.5 Expressly Permits Statutory Disclosures — Their Own NDA Defeats This	
✓	NDA Clause 3.2.5 explicitly excludes from the definition of Confidential Information any information that must be disclosed by law. The CCMA referral is a statutory right under Section 191 of the LRA — confirmed by Greene in their own termination letter. The ECSA complaint is governed by the Engineering Profession Act. Both are statutory disclosures and both fall within the express exclusion in Clause 3.2.5.
✓	Larry Nell voluntarily disclosed the existence and application of the NDA to Amy van der Merwe in his reply-all email of 3 March 2026 — where Amy was in the To field. A party cannot enforce confidentiality against the other party regarding subject matter they themselves disclosed to a third party.
✓	The NDA was signed as a pre-employment registration form on 26 February 2026 — before employment commenced. Its scope in the context of a statutory labour dispute is limited by the provisions of the LRA which cannot be contracted out of.
✓	If Greene raises the NDA, ask them to identify the specific clause breached. They cannot do so without confronting Clause 3.2.5 and their own prior disclosure to Amy.

SAY THIS	*Commissioner, the NDA executed on 26 February 2026 contains Clause 3.2.5 which explicitly excludes statutory disclosures from the definition of confidential information. My CCMA referral is a statutory right under Section 191 of the LRA — confirmed in Greene's own termination letter. My ECSA complaint is governed by the Engineering Profession Act. Both are protected. Furthermore, Larry Nell disclosed the NDA's existence to the recruitment agent Amy van der Merwe in his reply-all email of 3 March. I ask Greene to identify the specific clause they allege was breached.*

BOTTOM LINE: Low threat in practice. Their own NDA clause and their own prior disclosure

to Amy neutralise this entirely. They know it.

ATTACK 7 — LARRY NELL WAS YOUR ACTIVE SUPERVISOR

THREAT LEVEL: LOW — Manageable — counter with documented evidence	
GREENE'S ATTACK: The Supervision Requirement Was Satisfied — Larry Nell Was Named and Available	
✗	Larry Nell is named in the employment contract as the applicant's direct supervisor — this satisfies the formal requirement.
✗	The applicant worked for only nine days — insufficient time to establish a full supervision relationship.
✗	The applicant never gave Larry an opportunity to supervise before raising the issue formally.
✗	Larry Nell's registration as a Pr Eng is not in dispute — he is fully qualified to supervise.
✗	The EPA does not prescribe the frequency or form of supervision interactions.
YOUR COUNTER: A Name in a Contract Is Not Active Supervision — Their Own Letter Contradicts This	
✓	The ECSA requirement is for ACTIVE supervision of qualifying engineering experience — not nominal designation. Active supervision means project assignment, work review, mentorship, and professional guidance. None of these occurred in nine days.
✓	This point is answered by Greene's own termination letter. Point 5 claims Larry Nell was the active supervisor. Point 3 of the same letter confirms the instruction to report to Ruan Van Zyl was a lawful operational instruction. If Larry was actively supervising, why was Ruan Van Zyl the practical reporting line? Greene cannot maintain both positions simultaneously.
✓	On 6 March 2026 you formally requested in writing that Larry Nell confirm who your designated supervising PrEng would be. That email was never answered. If Larry was actively supervising, a response would have been straightforward.
✓	Ask Greene in cross-examination to produce a single document showing Larry assigned a project, reviewed your work, or conducted any mentorship interaction during your nine days. They cannot produce one.
✓	Nine days is not too short for supervision to begin — it is long enough to assign a project, introduce yourself as a supervisor, or send a single email. None of these happened.

SAY THIS	*Commissioner, I ask Greene to produce a single document — email, project assignment, reviewed calculation, or meeting note — showing Larry Nell functioned as my active supervisor at any point during my nine days of employment. The ECSA standard requires active supervision, not nominal designation. Furthermore, Greene's own termination letter is internally*

contradictory on this point — it claims Larry was my active supervisor while simultaneously stating that reporting to Ruan Van Zyl was a lawful operational instruction. Both cannot be true.

BOTTOM LINE: Low threat. Destroyed by the termination letter's own internal contradiction and by the absence of any supervision record Greene can produce.

ATTACK 8 — CAUSAL LINK DENIAL

THREAT LEVEL: HIGH — Address this first and with precision	
GREENE'S ATTACK: The Dismissal Was Not Caused by Protected Activity — It Was Caused by Conduct	
✗	The proximate cause of dismissal was the 6 March email which constituted insubordination — not any protected activity.
✗	The 3 March sick day email was responded to professionally and constructively by management. No dismissal intention arose from it.
✗	The applicant cannot point to any documented protected activity that directly caused the dismissal.
✗	The causal link required by Section 187 must be between a protected right and the dismissal — raising onboarding concerns is not an exercise of a statutory right.
YOUR COUNTER: The Causal Link Is Proven by Three Independent Facts	
✓	First: Greene's own termination letter quotes the 6 March email asserting Engineering Profession Act rights as the reason for dismissal. The Engineering Profession Act is an employment law. Asserting rights under it is protected activity under Section 187(1)(h). The causal link is written in their signed document — you do not need to argue it.
✓	Second: The 5 March meeting establishes that the dismissal decision was communicated before the 6 March email — proving the causal chain ran from the 3 March protected email directly to the dismissal decision. The 6 March email was not the cause — it was the written justification for a decision already made.
✓	Third: The temporal sequence itself — 3 March protected email, 5 March dismissal intention communicated, 9 March formal execution — is consistent only with retaliatory dismissal. No alternative explanation accounts for this sequence.
✓	Raising onboarding concerns in an email is not merely a personal grievance — it was the trigger for management's displeasure as confirmed by Larry Nell's own words at the 5 March meeting: 'upper management was not impressed with me raising the concern in my email.'

SAY THIS	*Commissioner, the causal link is established in three ways. First, Greene's own termination letter quotes my assertion of Engineering Profession Act rights as the reason for dismissal — that is protected activity under Section 187 and the letter proves it. Second, the dismissal intention was communicated to me on 5 March — before the 6 March email — establishing that my 3 March email was the actual trigger. Third, the sequence from 3 March to 9 March is consistent only with retaliatory dismissal. I do not need to argue the causal link — Greene's own documents establish it.*

BOTTOM LINE: Their argument fails at the first hurdle — their own termination letter is the proof. The 5 March meeting strengthens an already proven causal link.

ATTACK 9 — THE CREDIBILITY ATTACK

THREAT LEVEL: LOW — Manageable — counter with documented evidence	
GREENE'S ATTACK: The Applicant Is a Difficult, Complaining Employee Whose Account Cannot Be Trusted	
✗	Within three days of starting the applicant was sending complaint emails to management.
✗	The applicant apologised multiple times for tone — evidence of awareness that conduct was inappropriate.
✗	The applicant raised complaints about everything: the laptop, the seating, the tasks, the reporting structure, the onboarding.
✗	The applicant's emails are self-serving and drafted to create a paper trail — not genuine professional communication.
✗	No other employee at Greene has raised these concerns — the applicant is an outlier.
YOUR COUNTER: Your Email Record Is Your Best Character Witness	
✓	Every email you sent is documented and available. Read them in sequence. They are professional, measured, apologetic where appropriate, and constructive in every instance. No reasonable reader characterises them as difficult or aggressive.
✓	You apologised for tone three times — not for substance. This demonstrates emotional intelligence and professionalism, not an admission of wrongdoing.
✓	You expressed willingness to comply with rebar detailing — explicitly in writing. You expressed enthusiasm for working on Saxby and the lightweight steel structure. You thanked management for clarifications. These are not the emails of a difficult employee.
✓	Raising concerns about EPA supervision requirements after five days is not complaining — it is fulfilling a professional obligation. A candidate engineer who does not assert supervision requirements is failing their own professional duties under ECSA.
✓	The paper trail argument works against Greene, not against you. If your emails were self-serving, so is their termination letter — which was also written to create a record. Professionalism requires written communication.

SAY THIS	*Commissioner, I ask that my emails be read in full and in sequence. They are professional, measured, and constructive throughout. I apologised for tone on three occasions — not for substance — demonstrating professional maturity. I expressed explicit willingness to comply with tasks including rebar detailing. I cited legislation by name and asked only for what the law entitled me to. If raising Engineering Profession Act requirements in writing constitutes being a difficult employee, then every candidate engineer in South Africa should be characterised the same way.*

BOTTOM LINE: Low threat. Your email record is your character evidence. It speaks for itself.

ATTACK 10 — THE PROCESS COMPLIANCE ARGUMENT

THREAT LEVEL: MODERATE — Manageable — counter with documented evidence	
GREENE'S ATTACK: Sufficient Process Was Followed for a Probationary Dismissal	
✗	The alignment meeting on 5 March constituted an opportunity for the applicant to understand expectations.
✗	The meeting on 9 March gave the applicant an opportunity to raise concerns before the formal decision.
✗	Schedule 8 Item 8(5) does not require a full disciplinary hearing for probationary dismissals.
✗	The applicant was given 24 hours notice as per Clause 4 of the employment contract.
✗	The termination letter was professionally prepared and stated reasons — this demonstrates process.
YOUR COUNTER: Process for Misconduct Dismissal Is Non-Negotiable Regardless of Probation	
✓	Schedule 8 Item 8(5) applies to UNSUITABILITY. Greene stated INSUBORDINATION — misconduct. Misconduct dismissals require a disciplinary hearing under Schedule 8 Item 4 regardless of probationary status. An alignment meeting and a general discussion are not a disciplinary hearing.
✓	A disciplinary hearing under Schedule 8 Item 4 requires: written notice of specific allegations, a reasonable opportunity to prepare a response, and the right to state a case before the decision is made. None of these occurred. No charges were issued. No hearing was convened.
✓	Employment Contract Clause 10 independently requires Greene to follow their disciplinary code for termination. This is a contractual obligation separate from the LRA. They breached their own contract.
✓	The 24-hour notice clause in Contract Clause 4 is void under Section 37(2) of the BCEA which requires a minimum of one week's notice for service under six months. A void clause cannot constitute compliance.
✓	A professionally prepared termination letter is not a substitute for a disciplinary process. It is evidence that a decision had already been made — not that process was followed before the decision.

SAY THIS	*Commissioner, Schedule 8 Item 8(5) applies to unsuitability. The employer stated insubordination — a misconduct ground requiring a disciplinary hearing under Schedule 8 Item 4. An alignment meeting and a general discussion are not a disciplinary hearing. No written charges were issued, no formal hearing was convened, and no opportunity to respond to specific allegations was provided. Furthermore, Clause 10 of my employment contract independently required the*

employer to follow their disciplinary code. They did not. The 24-hour notice clause is void under Section 37(2) of the BCEA. Three separate process failures exist independently.

BOTTOM LINE: Moderate threat. Defeated by the misconduct versus unsuitability distinction, the Clause 10 contractual breach, and the BCEA notice void.

ATTACK 11 — THE SICK LEAVE PAY ARGUMENT (NEW — raised 13 March 2026)

THREAT LEVEL: MODERATE — Manageable — counter with documented evidence	
GREENE'S ATTACK: Sick Leave Was Unpaid — Applicant Was Not Entitled to Pay for Those Days	
✗	The applicant took two days of sick leave on 3 and 4 March 2026.
✗	Under the BCEA sick leave accrues at one day per 26 days worked during the first six months.
✗	At the time of the sick leave the applicant had worked only two days — insufficient to accrue any paid sick leave.
✗	The days should therefore have been unpaid and any payment made was an overpayment.
✗	The company has already been generous in paying for those days.
YOUR COUNTER: This Argument Was Raised for the First Time on 13 March — Not in the Termination Letter — It Is a Retaliatory Afterthought	
✓	This position was not raised in the termination letter of 9 March 2026. It does not appear in any prior correspondence. It was raised for the first time in the counter-proposal of 13 March 2026 — four days after dismissal and only after the applicant submitted a formal settlement demand. This is a retaliatory position, not a genuine accounting concern.
✓	On the legal position — Section 22 of the BCEA provides that an employee is entitled to paid sick leave from the first day of employment. The accrual cycle affects the total entitlement over 36 months but does not render the first days of sick leave automatically unpaid. The employer's interpretation of the accrual provisions is disputed.
✓	The employer produced a sick note which was accepted by management. The sick leave was approved and processed. The employer cannot retroactively reclassify approved sick leave as unpaid after dismissal.
✓	This argument actually creates a new and additional claim against Greene — an unlawful deduction or underpayment claim under Section 34 of the BCEA — which can be referred to the CCMA alongside the unfair dismissal claim.
✓	At conciliation: note this argument to the commissioner and state it was raised for the first time after the settlement proposal was rejected. Ask the commissioner to note the timing.

SAY THIS	*Commissioner, the employer raised the sick leave pay position for the first time on 13 March 2026 — four days after dismissal and in direct response to my settlement proposal. It does not appear in the termination letter or any prior correspondence. Section 22 of the BCEA entitles employees to sick leave from the first day of employment. The approved sick leave was supported by a medical*

certificate accepted by management. The retroactive reclassification of approved sick leave as unpaid after dismissal constitutes an unlawful deduction under Section 34 of the BCEA and I am adding this as an additional claim.

BOTTOM LINE: New attack but weak. Legally questionable, raised retaliatorily, and actually creates an additional claim in your favour. Use the timing against them.

ATTACK 12 — THE BAD FAITH SETTLEMENT DEFENCE (USE THIS AT CONCILIATION)

THREAT LEVEL: LOW — Manageable — counter with documented evidence	
GREENE'S ATTACK: Greene Attempted to Resolve the Matter Amicably and the Applicant Refused	
✗	Greene responded to the applicant's settlement proposal promptly.
✗	Greene offered a genuine resolution by changing the UI19 reason for termination — a meaningful administrative accommodation.
✗	The applicant rejected a reasonable offer and proceeded straight to formal proceedings.
✗	Greene demonstrated good faith throughout by engaging with the applicant's correspondence.
YOUR COUNTER: Greene's Counter-Proposal Was Bad Faith — A UI19 Checkbox for All Statutory Rights	
✓	The applicant submitted a formal without prejudice settlement proposal on 11 March 2026 opening at R219,000 net with 7 clearly stated terms including ECSA rights preservation and a neutral reference.
✓	Greene's counter-proposal offered a change to a UI19 notation — a clerical entry on a UIF form that has no monetary value, no bearing on professional references, and is invisible to future employers — in exchange for permanent waiver of ALL rights in ALL forums including the CCMA and ECSA.
✓	This is not an amicable resolution. This is an attempt to acquire a complete legal release for zero consideration. A counter-proposal that offers nothing of monetary value in exchange for surrendering a R219,000 claim is not a good faith negotiation.
✓	The commissioner will be presented with this correspondence in full. The contrast between the applicant's detailed, professionally structured settlement proposal and Greene's zero-value counter-proposal speaks directly to which party has engaged in good faith.
✓	The applicant exhausted pre-filing settlement attempts in good faith. Greene's refusal to engage substantively is why this matter is before the CCMA.

SAY THIS	*Commissioner, I want to place on record that before filing I made a genuine attempt to resolve this matter. On 11 March 2026 I submitted a formal without prejudice settlement proposal at R219,000 net. Greene's counter-proposal offered a change to a UIF administrative form — with no monetary compensation — in exchange for permanent waiver of all my rights including my right to be here today. That is not a good faith negotiation. I rejected it and filed. I ask the commissioner to note the settlement correspondence when assessing this matter.*

BOTTOM LINE: Low threat — this actually works strongly in your favour. Present the settlement correspondence to the commissioner. It demonstrates your good faith and Greene's bad faith simultaneously.

MASTER COUNTER-ARGUMENT SUMMARY

The table below gives you the one-line answer to every attack. Memorise these before any CCMA appearance.

#	THEIR ATTACK	THREAT	ONE-LINE COUNTER
1	Probation permits summary dismissal	HIGH	*s187 has no probation exception. Item 8(5) is for unsuitability not misconduct.*
2	Insubordination for refusing reporting instruction	MODERATE	*Instruction was unlawful under EPA. Clause 3 requires lawful instructions. Rebar sentence was truncated.*
3	5 March meeting denial	HIGH	*Sequence corroborates account. Ask them to produce their own meeting record.*
4	Incompatibility from day one	MODERATE	*Conversations were workstation setup. Complied immediately with instruction. Apology was for tone not conduct.*
5	Nine days service limits compensation	HIGH	*s194(3) awards are deterrent awards. Severity of conduct elevates the quantum. ECSA exposure drives settlement.*
6	NDA breach for CCMA and ECSA filing	MODERATE	*NDA Clause 3.2.5 excludes statutory disclosures. Larry disclosed NDA to Amy himself on 3 March.*
7	Larry Nell satisfied supervision requirement	LOW	*Name in contract is not active supervision. Letter contradicts itself at Points 3 and 5. No supervision record exists.*
8	No causal link between protected activity and dismissal	HIGH	*Their own termination letter quotes EPA assertion as the reason. Causal link is in their signed document.*
9	Applicant is difficult and unreliable	LOW	*Email record shows professional and measured conduct throughout. Read the emails in full sequence.*
10	Sufficient process followed for probationary dismissal	MODERATE	*Misconduct requires s8 Item 4 hearing. Clause 10 breach. BCEA voids 24-hour notice clause.*
11	Sick leave was unpaid — raised 13 March 2026	MODERATE	*Raised retaliatorily after settlement rejected. Not in termination letter. BCEA s22 disputes legal position. Creates additional unlawful deduction claim.*
12	Greene attempted amicable resolution in good faith	LOW	*Their counter offered zero monetary value for all statutory rights. Bad faith conduct documented. Present settlement correspondence to commissioner.*

THE GOLDEN RULE

Stay calm. Never raise your voice. Never argue with emotion.
Every attack has a counter. Every counter is in this document.
Their termination letter is your best witness. Let it speak.

You are documented. You are prepared. You are ready.